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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

OBJECTION / STRIKE

SEPT 22 SUPPLEMENTAL

CCP 391

Hearing: October 6, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under Code of Civil Procedure section 1010; California Rules of Court, rules 3.1110 and 3.1113; and Code of Civil Procedure sections 391 through 391.7, 916, and 1049, as an objection to matter filed outside the August 26, 2026 briefing order on Defendant's motion to declare Plaintiff a vexatious litigant.
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court,

1 rules 2.118 and 2.119; this paper does not present any of those grounds.

2 4. The Court’s authority to consider the substance is under the August 26, 2026 order continuing
3 the motion, and under Code of Civil Procedure sections 391 through 391.7, 916, and 1049.

4 5. This paper objects to specified parts of Defendant’s September 22, 2026 supplemental brief
5 and the Declaration of Tyler J. O’Connell filed with it. It does not replace Plaintiff’s July
6 21-22, 2026 opposition, the August 20, 2026 supplemental papers, or Plaintiff’s objections
7 under California Rules of Court, rule 3.1312. It is not a second opposition on the merits of
8 the vexatious-litigant motion.

9 Hearing: October 6, 2026, 9:00 a.m., Dept. 302.

10 **PLAINTIFF’S OBJECTION TO DEFENDANT CSAA INSURANCE EXCHANGE’S SEPTEMBER 22, 2026 SUPPLEMENTAL BRIEF AND DECLARATION OF TYLER J. O’CONNELL**
11 **AS EXCEEDING THE AUGUST 26, 2026 BRIEFING ORDER; REQUEST TO STRIKE**
12

13 **I. INTRODUCTION**

14 On August 26, 2026, this Court heard Defendant CSAA Insurance Exchange’s motion to declare
15 Plaintiff a vexatious litigant in Case No. CGC-25-631802. The face of the order states: “Off
16 calendar. Case stayed.” The Court continued the motion to October 6, 2026, at 9:00 a.m. in this
17 department, and ordered each party to file a supplemental brief of no more than six pages on two
18 questions only: whether this Court currently has jurisdiction to hear the motion, and the application
19 of *Pittman v. Beck Park Apartments, Ltd.* (2018) 20 Cal.App.5th 1009.

20 Defendant’s memorandum is six printed pages. Plaintiff does not object that the memorandum
21 missed the page count, and does not object that the filing date missed close of business on September
22 22, 2026. The courtesy-copy deadline of 4:00 p.m. on September 24, 2026 has not arrived.
23 The objection is that Defendant used the brief, and an 80-page declaration packet, for matters the
24 order did not authorize, and then asked the Court to grant the motion while the case is stayed.
25 Citations below are to the printed page and line of Defendant’s supplemental brief.

26 **II. THE ORDER’S LIMITS**

27 The August 26, 2026 order did four things that control this objection. It took the motion off calendar.
28 It stayed the case. It continued the hearing to October 6, 2026. It confined the supplemental

1 briefs to jurisdiction and *Pittman*, in no more than six pages.

2 A six-page memorandum that spends its later pages on probability of prevailing, a mooted demur-
3 rer, other lawsuits, and a same-day email is not a brief on those two questions. A declaration with
4 three exhibits, running about 80 PDF pages, is not the brief the Court ordered.

5 **III. PASSAGES THAT EXCEED THE ORDER**

6 **A. Introduction, page 1, lines 25-28, and page 2, lines 1-3.** Those lines tell the Court that “no
7 reasonable probability” of prevailing can be decided apart from the appeal, and that the Court can
8 and should “proceed to decide the motion.” The order asked whether the Court has jurisdiction. It
9 did not ask the Court to decide the motion in the supplemental brief.

10 **B. Section A, page 2, lines 21-26.** The discussion of Code of Civil Procedure section 916 above
11 those lines is on the first question. Lines 21-26 ask for three orders: that Plaintiff be deemed a
12 vexatious litigant, that he obtain court approval for future filings, and that he furnish security “in
13 his multiple pending litigations.” They also say that affirmance or reversal of the anti-SLAPP order
14 would not undo those determinations. That is a request for relief.

15 **C. Section C in full, page 4, line 4, through page 5, line 9.** The heading is that the Court can
16 determine Plaintiff has no reasonable probability of success. The section argues Code of Civil
17 Procedure sections 391(b) and 391.1, a filed but mooted demurrer and motion to strike, and a
18 security order under section 391.1(a). None of that is one of the two questions.

19 **D. Section D in full, page 5, line 10, through page 6, line 13.** The heading invokes “harassment”
20 and filings in other courts. The section asserts six pending actions, the appeal in *Rosario v. Abdel-*
21 *halim*, No. A173827, a Contra Costa complaint, and email correspondence, and it asks the Court
22 to “decide this motion on the merits.” That is a merits brief.

23 **E. Conclusion, page 6, lines 15-17.** Defendant asks the Court to “proceed to hear, and grant,” the
24 motion, “including all other relief as requested in the Motion and Proposed Order.” The August
25 26 order vacated submission, stayed the case, and continued the hearing for briefing on two legal
26 questions. A grant request on this filing goes outside that order.

27 **F. Declaration of Tyler J. O’Connell, paragraphs 2 through 5, and Exhibits A, B, and C.** The
28 order authorized a supplemental brief. It did not authorize a new evidentiary record. Paragraphs

2 through 5, and Exhibits A (a Contra Costa complaint), B (an unpublished appellate opinion), and C (email), are offered to prove vexatious conduct. They do not brief section 916 or *Pittman*. In the alternative, the packet evades the six-page limit by moving the same merits material into attachments after the memorandum used its six pages.

IV. WHAT PLAINTIFF DOES NOT OBJECT TO

Plaintiff does not ask the Court to strike the statement of the two questions (brief page 1, lines 5-9), Section A except page 2, lines 21-26, or Section B (page 3, line 1, through page 4, line 3). Those parts address jurisdiction and *Pittman*. Plaintiff will answer them at the October 6 hearing. Errors in that discussion are not a ground to strike the filing for violating the briefing order.

V. THE STAY

The case is stayed. Defendant's excess pages and exhibits ask the Court to receive a merits record, and to grant relief, before the Court decides the jurisdiction question the order set for October 6. Plaintiff asks that those parts be stricken and disregarded for any purpose on the motion.

VI. RESERVATION

Plaintiff does not waive the July 21-22, 2026 opposition, the August 20, 2026 supplemental papers, the objections under California Rules of Court, rule 3.1312, or the objections under Code of Civil Procedure sections 916 and 1049. Plaintiff does not consent to jurisdiction to hear or grant the motion while the stay and the appeal from the July 1, 2026 order remain.

VII. REQUEST

Plaintiff respectfully requests that the Court:

1. Strike brief page 1, lines 25-28; page 2, lines 1-3; page 2, lines 21-26; Section C; Section D; and page 6, lines 15-17;
2. Strike the Declaration of Tyler J. O'Connell and Exhibits A, B, and C;
3. Disregard those passages and exhibits for any purpose on the vexatious-litigant motion;
4. Limit the October 6, 2026 hearing to the two questions in the August 26, 2026 order, on the brief passages that address those questions; and
5. Keep the August 26, 2026 stay in place until the Court decides the jurisdiction question.

1 Dated: September 22, 2026

2 

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